Mapping Where Your Private E-Scooter Rides Legally

Texas law lets a conforming stand-up e-scooter be ridden with **no driver's license, registration, insurance, inspection or state helmet requirement**. It may use streets posted **35 mph or less**, sidewalks, and paths reserved exclusively for bicycles. The same statute also lets any city take those places away on a safety determination, and all three of your cities have done so to different degrees.

Dallas leaves the most room. You can ride on public streets posted 30 mph or less (the codified citywide default) and in bike lanes on those streets, at 20 mph or less, with a white headlamp and a red rear reflector or lamp at night. You cannot ride on sidewalks, trails, parks or plazas. Arterials posted exactly 35 mph are legal under state law, but they are a gray zone in Dallas: the City publishes a "35 MPH or higher" no-ride rule, and the code text behind it could not be read.

University Park permits riders **18 and older** only on a handful of SMU-border segments: Airline Rd., SMU Blvd., Bush Ave., and listed Hillcrest and Daniel sidewalks. SMU's private campus is also open under SMU's own rules. Riding anywhere else in University Park is a citable offense; SMU says the fine is $136.

Highland Park bans operating any motor-assisted scooter on any public right-of-way or any outdoor area open to the public, including privately owned ones. The only lawful riding there is on private property closed to the public.

DART rail lets you carry a scooter aboard in the wheelchair and stroller area. That is the cleanest lawful way to bridge the zones where riding is banned.

If you are challenged, your best protection is facts and text: proof of the scooter's specifications, the posted limit, the exact location, your age, and the ordinance version in force. Preemption is a weak shield. No court has held any of these local bans invalid, and § 551.352(b) expressly authorizes bans on streets and sidewalks.

Verification caveat: Every quotation in this report comes from search-engine extracts, because the research environment's network policy blocked the official statute and code sites. Check every quotation against the official text before relying on it in court.

How to read this report: AI research checked only through search extracts

This is AI legal research, not legal representation. No attorney–client relationship exists, and nothing here replaces advice from a licensed Texas attorney who has reviewed your facts. **The verification date is 2026-10-09.** Laws, ordinances, posted speed limits and program rules

can change after that date.

Network disclosure. The research environment's network policy blocked direct access to:

- the official statute and code hosts: statutes.capitol.texas.gov, tcss.legis.texas.gov, capitol.texas.gov, ecode360.com, codelibrary.amlegal.com and files.amlegal.com;
- city, transit and university sites: dallascityhall.com, dallasparks.org, hptx.org, uptexas.org, smu.edu and dart.org;
- texasattorneygeneral.gov;
- case-law databases: CourtListener, Google Scholar and search.txcourts.gov.

Every quotation below therefore comes from **search-engine result extracts** of official pages or of mirror sites (FindLaw, Justia, texas.public.law, Onecle). The extracting tools sometimes paraphrase even inside quotation marks, and some extracts were truncated. **Check every quotation against the official text before relying on it in court.**

Verification labels from the research notes are carried through unchanged:

- **"Extract-verified"**: a search extract of the cited source supported the point. Nobody read the full page.
- **"Unverified (recollection)"**: the point comes from a researcher's prior knowledge and could not be confirmed live in this session. The link given is where to check it.
- **"Single extract"** and **"conflicting"**: flagged where they apply.

Certainty ratings for conclusions are **clearly established**, **ambiguous**, or **subject to interpretation**.

Binding law versus everything else. Binding law means statutes, codified ordinances, and the director-issued rules that bind the people they govern. Guidance and interpretation are kept separate:

- City web pages
- the Texas A&M Transportation Institute (TTI) officer guide
- news reports
- law-firm blogs

Rental rules versus private-scooter rules are kept separate throughout.

Assumed device: a privately owned stand-up scooter with:

- two wheels of roughly 8.5–10 inches;
- a standing deck, with no seat and no pedals;
- an electric hub motor;
- a working brake;
- the ability to be kicked along by foot;
- a top speed of about 15–25 mph.

If your scooter differs, Section 2.5 and Section 8 explain why that matters.

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1. State law permits the ride, and cities may switch it off

1.1 Texas classifies the stand-up scooter as a "motor-assisted scooter"

Everything favorable to you turns on the device meeting the definition of **"motor-assisted scooter"** in Transportation Code **§ 551.351**. A scooter that meets it gets two things:

- **§ 551.352(e)** removes every Title 7 provision "applicable to a motor vehicle".
- **§ 551.352(d)** imports the bicycle rules.

The definition has **no speed cap and no wattage cap**. Its only motor limit, "not exceeding 40 cubic centimeters," measures piston displacement, which an electric hub motor does not have. No AG opinion, appellate case, or DPS/TxDOT/TxDMV guidance applying the 40-cc limit to electric motors was found (FindLaw § 551.351; TTI officer guide).

A seatless, kickable stand-up scooter is therefore a motor-assisted scooter on the face of the text. A 1,000 W-plus, 30–40 mph machine invites a purposive argument that it is not the "low-powered" device the chapter title contemplates. The Legislature considered replacing the cc limit with a **2,000-watt electric cap** in S.B. 549 (2019), but did not enact it (S.B. 549 committee substitute).

Authority	Official text	Short quotation (search extract)	Application to your scooter	Certainty / label
Transp. Code § 551.351 (definition)	Official Ch. 551 PDF; extract via FindLaw and texas.public.law	Self-propelled device with "at least two wheels in contact with the ground during operation"; "a braking system"; "a gas or electric motor not exceeding 40 cubic centimeters"; "a deck designed to allow a person to stand or sit while operating the device"; "the ability to be propelled by human power alone". It "does not include a pocket bike or a minimotorbike."	A seatless, braked, kickable stand-up scooter meets every element on the text.	**Clearly established** for a typical 250–1,000 W, 15–25 mph scooter. **Ambiguous** for high-power or 30–40 mph units (40-cc element). Extract-verified.
§ 551.351 (pocket bike / minimotorbike)	Same; texas.public.law	Paraphrase-level elements: motor or engine under 50 cc; not more than two wheels on the ground; **"a seat or saddle"** for the operator; not designed for highway use; ineligible for a Ch. 501 title.	With no seat, the scooter is not a pocket bike. Adding a seat creates exposure.	**Clearly established** for a seatless scooter. Paraphrase-level extract.
§ 551.353	H.B. 1596 engrossed text; Justia 2025 Subch. E	"This subchapter may not be construed to authorize the operation of a pocket bike or minimotorbike on any ..." (the list covers roads, bicycle-only paths and sidewalks)	Does not reach a seatless scooter. **It is not the local-ban section** (see 1.7).	**Clearly established.** Extract-verified heading.
§ 541.201 (motorcycle, moped, motor vehicle)	Official Ch. 541; extract via Justia 2025	Motorcycle: "a motor vehicle, other than a tractor or moped, that is equipped with a rider's saddle and designed to have when propelled not more than three wheels on the ground." A moped also requires a rider's saddle, plus "cannot attain a speed in one mile of more than 30 miles per hour" and no more than five brake horsepower. Motor vehicle: "a self-propelled vehicle".	No saddle means neither moped nor motorcycle. A device that falls outside § 551.351 becomes a generic "motor vehicle" that cannot be registered.	**Clearly established** (definitions). Extract-verified.
Tex. Att'y Gen. Op. KP-0331 (2020)	KP-0331 PDF	TxDMV found certain three-wheel electric vehicles "do not meet the definition of a 'motorcycle' ... because they lack the rider's 'saddle'". Classification "would depend on particular facts".	The agency treats the saddle as the dividing line.	**Clearly established** as agency practice. Full holding not retrieved.

Authority	Official text	Short quotation (search extract)	Application to your scooter	Certainty / label
§ 664.001 (electric bicycle)	Official Ch. 664	A bicycle "(A) equipped with: (i) fully operable pedals; and (ii) an electric motor of fewer than 750 watts; and (B) with a top assisted speed of 28 miles per hour or less."	No pedals means not an e-bike.	**Clearly established.** Extract-verified.
§ 551.201 (EPAMD)	FindLaw § 551.201	Paraphrase: a single-rider device with **two non-tandem wheels** that is self-balancing.	Inline wheels and no self-balancing mean not an EPAMD.	**Clearly established.**
§ 551.352(e)	FindLaw § 551.352; existing-law text in S.B. 549 Senate text	"A provision of this title applicable to a motor vehicle does not apply to a motor-assisted scooter."	No license (Ch. 521), registration (Ch. 502), insurance (Ch. 601), inspection, or state helmet rule (Ch. 661).	**Clearly established.** Extract-verified.

If the scooter is not a motor-assisted scooter, nothing better replaces that status. It falls to the generic "self-propelled vehicle" class, so it is a motor vehicle. It cannot be titled without a manufacturer's certificate of origin and FMVSS compliance. That exposes the rider to charges of riding with no registration, no license and no insurance (TxDMV, Register Your Vehicle; TxDMV, Assembled Vehicles).

The **DWI** statutes sit outside this framework. Penal Code § 49.01 borrows the § 32.34(a) definition of "motor vehicle": "a device in, on, or by which a person or property is or may be transported or drawn on a highway". Section 551.352(e) reaches only Transportation Code Title 7, so a scooter rider on a street is probably exposed to DWI. One researcher extract-verified this definition (FindLaw Penal § 32.34); another could not confirm its current wording. No Texas appellate case deciding scooter DWI was found. Rating: **subject to interpretation, high risk**.

1.2 The operating rules: 35-mph streets, sidewalks and bicycle duties

Authority	Official text	Short quotation (search extract)	Application	Certainty / label
§ 551.352(a)	Official Ch. 551 PDF; extract via FindLaw	"A motor-assisted scooter may be operated only on a street or highway for which the posted speed limit is 35 miles per hour or less. The motor-assisted scooter may cross a road or street at an intersection where the road or street has a posted speed limit of more than 35 miles per hour."	A road posted 35 or less is lawful at state level. A road posted above 35 may only be crossed, and only at an intersection; mid-block crossing is not covered.	**Clearly established.** Extract-verified.
§ 551.352(b)	texas.public.law § 551.352	"A county or municipality may prohibit the operation of a motor-assisted scooter on a street, highway, or sidewalk if the governing body of the county or municipality determines that the prohibition is necessary in the interest of safety."	This is the express authority behind the Dallas, Highland Park and University Park bans.	**Clearly established** in substance. The exact wording is a recalled quotation that is consistent across extracts.
§ 551.352(c)	Justia 2017 Ch. 551	TxDOT "may prohibit the operation of a motor-assisted scooter on a highway if it determines that the prohibition is necessary in the interest of safety"	No TxDOT scooter order was found, but 43 TAC was not checked.	**Clearly established** (text). Order search incomplete.

Authority	Official text	Short quotation (search extract)	Application	Certainty / label
§ 551.352(d)	Extract via Rollingwood TX and FindLaw	"A person may operate a motor-assisted scooter on a path set aside for the exclusive operation of bicycles or on a sidewalk." Second sentence (recalled): "Except as otherwise provided by this section, a provision of this title applicable to the operation of a bicycle applies to the operation of a motor-assisted scooter." Its substance is confirmed by Richardson PD: "any traffic law which applies to bicycles also applies to motor assisted scooters."	The state default allows sidewalks and bicycle-only paths. The bicycle duties apply.	First sentence **clearly established**, extract-verified. Second sentence: substance clearly established, wording unverified (recollection).
§ 545.422 (sidewalks)	Official Ch. 545 PDF; FindLaw § 545.422	"A person may not drive a motor vehicle on a sidewalk, sidewalk area, or hike and bike trail except on a permanent or authorized temporary driveway." A "hike and bike trail" is "a trail designed for the exclusive use of pedestrians, bicyclists, or both."	Does not apply to a conforming scooter, because of § 551.352(e) and the more specific § 551.352(d).	**Clearly established.**
§ 551.103 (applied through (d))	FindLaw § 551.103	A rider moving slower than traffic "shall ride as near as practicable to the right curb or edge of the roadway". Exceptions cover passing, preparing a left turn, surface hazards, and outside lanes under 14 feet wide.	Keep right unless an exception applies.	**Clearly established** that it applies.
§ 551.104 (applied through (d))	texas.public.law § 551.104	"A person may not operate a bicycle unless the bicycle is equipped with a brake capable of making a braked wheel skid on dry, level, clean pavement." At night: a white front lamp visible from at least 500 feet, plus a rear red reflector of an approved type or a red rear lamp visible from 500 feet.	Whether a small built-in light meets these standards is a factual question.	**Clearly established** that it applies. Compliance is factual.
§§ 542.301, 542.401 (penalty)	texas.public.law § 542.401	A misdemeanor "for which another penalty is not provided shall be punished by a fine of not less than $1 or more than $200"	State-law scooter violations are fine-only.	**Clearly established.**
No statewide age, speed, passenger-count statute specific to scooters, license or helmet rule	S.B. 549 engrossed; H.B. 4499; TTI guide	Bills proposing an age-16 minimum, a license, and 15/20 mph caps all failed. TTI: no registration, no insurance, no state helmet rule, passengers prohibited, lights at night.	No state minimum age or helmet rule applies. The passenger limit applies through the bicycle rules.	**Clearly established.** No enacted 2023 or 2025 change was found; the 2025 special sessions were not checked.

1.3 Dallas: § 28-41.1.1 binds private riders, Chapter 43 binds rental fleets

Dallas's rider rules are in **City Code § 28-41.1.1**, "Restrictions on the use of motor assisted scooters and electric bicycles." The older § 28-41.1 is now "Reserved" (amlegal Ch. 28). **The verbatim text of subsections (a)-(k) could not be read.** Everything about what those subsections say rests on the City's own description, council statements and news coverage. Only subsection (k), the up-to-$200 penalty, is identified by letter (City Dockless Vehicle Program page).

The section was probably rewritten by a **June 22, 2022** ordinance: agenda item 37, file 22-1303, probably Ord. 32235 (June 22, 2022 agenda; amlegal 32235.pdf). The link to that ordinance number is rated ambiguous.

The rental program sits apart from this. It lives in **Chapter 43, Article X**, which § 43-157 keys to "shared dockless vehicles" unlocked through an app, and in director-issued **Program Rules**. The current Program Rules are dated **4.17.26** and took effect April 28, 2026 (Ord. 30936; Program Rules 4.17.26).

Authority	Official text	Short quotation (search extract)	Application to a private rider	Certainty / label
§ 28-41.1.1 (scope and penalty)	amlegal Ch. 28; City program page	City: "Sec. 28.41.1.1 of the City Code contains regulations on riding and parking electric and motor-assisted scooters and bicycles"; riders can be fined "up to $200" under "Section 28-41.1.1(k)".	Binds private riders. It sits in the traffic chapter and is framed around persons, not operators.	**Clearly established** as the City's position. Code text unseen.
§ 28-41.1.1 no-ride zones	BikeDFW restating City text; Community Impact, Apr. 12, 2023	"Scooters (rented and privately owned) may not be ridden on or in: sidewalks, trails, parks, plazas, on roads with a speed limit of 35 MPH or higher, and in other designated No-Ride Zones. Riders must dismount and walk their device through these areas." Community Impact: "Whether rented from the city or privately owned ..."	**Sidewalks, trails, parks and plazas are banned for private riders.** The 35-mph wording is discussed in 1.7.	Sidewalk, trail, park and plaza bans: **clearly established** as the City's position. A conflicting extract of the same City page says "Dockless Vehicles", which leaves residual doubt.
Council statement (2023)	CBS Texas	Council member Moreno: "It is illegal to ride rented, or privately owned scooters, on sidewalks in public parks, plazas, and most city trails."	Corroborates coverage of private riders. "Most city trails" hints at unnamed exceptions.	Guidance. Not binding.
20 mph cap	City program page	"city-wide speed limit of 20 MPH for scooters and e-bikes"	Probably binds private riders. A speed subheading appears inside § 28-41.1.1 in the amlegal snippet.	**Ambiguous, leaning yes.**
Ch. 43 Art. X and Program Rules	Ord. 30936; Program Rules 4.17.26	Rentals end by 9 p.m.; 10 mph slow-ride zones at Bishop Arts, Deep Ellum, Farmers Market, Victory Park and the Ronald Kirk Bridge; $20 parking fine; riders 16+; geofencing.	**Rental-only by their terms.** They do not bind a privately owned scooter.	**Clearly established** for the permit and fee rules, slow zones, the $20 fine and the age gate. Curfew: **ambiguous, leaning rental-only**, because staff can change it administratively (DMN, Apr. 10, 2024).
Ch. 32 parks and Parks policy	Dallas Parks etiquette page; Ch. 32 PDF	"Motorized scooters are not permitted in City of Dallas parks or on trails." § 32-2 (partial): unlawful "to ride any wheel on a walk in such park".	Parks and trails are banned. Enforcement is probably through § 28-41.1.1.	**Clearly established** as City policy. Chapter 32 text is partial.
Ord. 31048 (Nov. 2018)	Ord. 31048 PDF	"A person commits an offense if he: (1) operates or rides a motor assisted scooter on any city-owned or city-operated public path or trail set aside for the exclusive use of bicycles."	The 2018 ban on bicycle-only paths. It directly conflicts with § 551.352(d) (see Section 7). Its current form is unknown.	**Ambiguous** whether it survives in current text.
Katy Trail rules	Friends of the Katy Trail	"No motorized vehicles permitted"	Banned.	**Clearly established** (posted official rule).
Klyde Warren Park rules	KWP Park Rules	Prohibits "riding bikes, scooters, motorized vehicles, skateboards, etc., through the Park"	Rule of the private manager, enforced by removal or trespass.	**Clearly established** as an owner rule.

Authority	Official text	Short quotation (search extract)	Application to a private rider	Certainty / label
Ch. 9 helmets (§§ 9-7, 9-8)	Dallas Parks copy of Ch. 9; KERA, June 2, 2023	§ 9-8(b): a parent "commits an offense if he knowingly causes or permits ... the minor to operate or ride upon a bicycle without a helmet". KERA: "Dallas city code only prohibits children under 17 from not wearing helmets on electric scooters or bikes."	Adults: no helmet required. Minors: helmet required, but the age cutoff conflicts (see 1.7).	Adults **clearly established**. Minors **ambiguous**.

1.4 Highland Park Article 12.09: a total ban on public operation

Authority	Official text	Short quotation (search extract)	Application	Certainty / label
§ 12.09.002 (Ord. 2042, adopted 9/10/18)	eCode360 Art. 12.09	"No person may operate a motor-assisted scooter upon any public area or public right-of-way within the corporate limits of the Town."	Bans riding on every Town street, alley, sidewalk, parkway, trail and park. Rental and private scooters are treated the same (People Newspapers, Sept. 22, 2018).	**Clearly established.**
"Public area" (Art. 12.09 definitions)	Same	"Any outdoor area that is open to the public for public use, whether owned or operated by the Town or a private party."	Reaches privately owned outdoor areas open to the public, such as shopping-center walks and parking courts.	**Clearly established** on the text. State-law support for the private reach is **subject to interpretation**.
"Public right-of-way"	Same	"Any public alley, parkway, public transportation path, roadway, alleyway, easement, sidewalk, or street that is owned, granted by easement, operated, or controlled by the Town."	Includes paths.	**Clearly established.**
Parking clause	Same	"No person shall park, or otherwise abandon, a bicycle, electric bicycle, motor-assisted scooter or shared mobility device in a public area or on a public right-of-way" [truncated]	Do not leave a scooter parked in public in Highland Park. The truncated text may limit the clause to parking that impedes access.	**Ambiguous** (truncated).
Dismounted riders (Art. 12.09)	Same	Paraphrase: a rider who dismounts counts as a pedestrian.	Walking the scooter through town is not "operating" it.	**Subject to interpretation.** Paraphrase only.
§ 1.01.009 general penalty	HP General Provisions	Violations "shall be punished by a fine not exceeding five hundred dollars ($500.00)"	Up to $500, unless Art. 12.09 sets its own penalty (none was seen).	**Clearly established** cap. The scooter-specific penalty is unknown.
Tennis courts	eCode360	Prohibits "the use of scooters or motorized vehicles"	A separate ban.	**Clearly established.**
Code currency	hptx.org; eCode360 listing	Code current through Ord. 2170 (May 19, 2026). Ord. 2150 (9/16/2025) "Amends Traffic and Vehicles Ch 12", contents unknown.	Check whether Ord. 2150 touched Art. 12.09.	**Unresolved.**

No scooter exception appeared in the extracts: nothing for crossing, ADA or mobility devices, age, or permitted zones. That is a gap in what could be seen, not proof the code has none. Highland Park's e-bike permit regime (Ord. 2138, effective Jan. 1, 2025: driver's license, Town permit, helmet under 21) **does not cover scooters** (HP E-Bike Information).

1.5 University Park § 12.01.011 and SMU Policy 9.14

Authority	Official text	Short quotation (search extract)	Application	Certainty / label
§ 12.01.011(a) (ban since 2009)	eCode360 Art. 12.01	"Subject to the exceptions provided in this section, it shall be unlawful and an offense for any person to drive or operate a motor-assisted scooter ("scooter") on a public street, highway or sidewalk in the city." "Street" includes alleys.	Banned on all public streets, alleys and sidewalks except the permitted area. Applies to private and rental scooters alike.	**Clearly established.**
§ 12.01.011(c), permitted area (Ord. 18-048 / 18/049, 12/18/18)	eCode360 MAS page	"(A) On the street or sidewalks on both sides of Airline Road, from SMU Boulevard to Daniel Street; (B) On the street or sidewalks on both sides of SMU Boulevard; (C) On the street or sidewalks on both sides of Bush Avenue." Paraphrase only: the east sidewalk of Hillcrest from Daniel to the south city limit; the south sidewalk of Daniel from Hillcrest to Airline; both Daniel sidewalks from Airline to Durham.	The only lawful public riding in University Park. Items (A)–(C) cover street and sidewalk. The Hillcrest and Daniel items are **sidewalk-only**.	(A)–(C) **clearly established** in substance; the extract was "garbled in places". Hillcrest and Daniel items **ambiguous**.
Age 18	eCode360 Art. 12.01; SMU guidelines	The prohibition "does not apply to a person eighteen (18) years of age or older" [truncated, in context of the permitted areas]	A rider under 18 has no lawful public riding area in University Park.	**Clearly established.**
Art. 12.09 (rental operators)	eCode360 MAS page	"Operators will limit the speed of scooters to not more than 10 miles per hour." Scooters "may be operated only in the public right-of-way locations authorized by section 12.01.011".	The 10 mph rule is **worded as an operator duty**. Whether it binds a private rider as an ordinance offense is uncertain.	**Ambiguous.** The rental/private distinction matters here.
§ 1.09.032 (parks)	UP Park Rules	"Motorized vehicles, including go-carts, motorcycles, minibikes, automobiles, pickup trucks, and trucks, are hereby prohibited from driving or being driven in each and every park within the boundaries of the city except ..."	The list is illustrative, so it probably covers scooters.	**Single extract.** A second search could not find it again. The not-permitted outcome is well supported either way.
SMU Policy 9.14	SMU Policy 9.14	"the use of shared-use Electric Scooters on the SMU campus is prohibited"; "SMU Police may issue citations to operators of Electric Scooters and Personal Mobility Devices who violate state law or City Ordinances"; scooters "are not allowed in SMU owned, leased, rented, or occupied buildings"	**Private scooters are allowed on the interior campus.** Rentals are not. 10 mph; no tandem riding; no riding under the influence.	Owner rule, binding on SMU property. Revision date conflicts (Aug. 2023 vs. Feb. 4, 2026).
SMU guidelines	SMU guidelines	"Speed of electric scooters must be limited to ten (10) miles per hour or as reasonable ..., whichever is less"; no riding at the George W. Bush Presidential Center; elsewhere in University Park violators "are subject to a $136 municipal fine."	$136 is SMU's statement of the fine. It is undated, and it is unknown whether court costs are included.	Guidance about the City's fine. Not ordinance text.

1.6 Preemption framework, cases and Attorney General opinions

Authority	Link	Short quotation	Application	Certainty / label
Transp. Code § 542.201 (uniformity)	Justia 2024; Official Ch. 542	"This subtitle applies uniformly throughout this state. A local authority may not enact or enforce an ordinance or rule that conflicts with this subtitle unless expressly authorized by this subtitle."	A local rule that conflicts with § 551.352 survives only if § 551.352(b) expressly authorizes it.	**Clearly established.** Extract-verified for the first two sentences.

Authority	Link	Short quotation	Application	Certainty / label
§ 542.202 (local powers)	FindLaw § 542.202	The list includes bicycles and "the speed of vehicles in a public park". It has **no item on motor-assisted scooters**.	Supports local park speed rules. Scooter power comes from § 551.352(b).	Extract-verified (summary).
Home rule	LGC ch. 51 (texas.public.law); HP Charter; UP City History	LGC § 51.072: a home-rule city "has full power of local self-government". Highland Park's charter dates from 1975 and was revised in 2004. University Park's home-rule charter was adopted in 1989. Dallas has long been home-rule (recollection).	All three cities need no grant of power, only freedom from a clear state limit.	**Clearly established** for Highland Park and University Park. Dallas is unverified (recollection) but universally recognized.
Dallas Merchant's & Concessionaire's Ass'n v. City of Dallas, 852 S.W.2d 489 (Tex. 1993)	Quoted in *City of Santa Fe v. Young*	"A general law and a city ordinance will not be held repugnant to each other if any other reasonable construction leaving both in effect can be reached"; preemption requires "unmistakable clarity".	Favors harmonizing § 551.352(d) with local bans.	Extract-verified through a secondary quotation.
City of Brookside Village v. Comeau, 633 S.W.2d 790 (Tex. 1982)	Google Scholar search	Home-rule cities "look to the Legislature not for grants of power, but only for limitations on their power"; ordinances are presumed valid.	The challenger bears the burden.	**Unverified (recollection).**
City of Laredo v. Laredo Merchants Ass'n, 550 S.W.3d 586 (Tex. 2018)	Justia	The bag ban was held preempted because the statute barred local restrictions "in a manner not authorized by state law".	Where a statute expressly limits cities, courts apply its text strictly.	Extract-verified holding. Pin cites unverified.
H.B. 2127 (2023, "Texas Regulatory Consistency Act")	Houston petition	Field preemption in eight codes. **The Transportation Code is not among them.**	Irrelevant to scooter ordinances.	**Clearly established**, but unverified (recollection). The appellate outcome of *City of Houston v. State* was not verified.
Scooter cases and AG opinions	—	No Texas appellate decision or AG opinion construing § 551.351, § 551.352(b), scooter stops or scooter DWI was found. GA-0966 concerns neighborhood electric vehicles. KP-0331 concerns the saddle element for three-wheel vehicles.	Questions of first impression.	**Ambiguous**, because the search was limited.

1.7 Source conflicts to resolve before anything goes to court

Issue	What one set of sources says	What another set says	Working position in this report
§ 551.352 subsection numbering	FindLaw, texas.public.law, the TTI guide and a Rollingwood page put the local-ban power in **(b)**, sidewalk and bicycle-path permission in **(d)**, and the motor-vehicle exclusion in **(e)** (texas.public.law).	One researcher's unverified recollection reversed (b) and (d). The assignment and some materials cite § 551.353 for local power, but § 551.353 is the pocket-bike section. Older materials cite "§ 551.301".	Use (a)–(e) as in the majority extracts. **Confirm on the official Ch. 551 text before citing a subsection letter in any filing.**
Dallas road threshold	The City page and Community Impact (2023) say no riding on roads "35 MPH or higher".	State § 551.352(a) allows roads posted "35 miles per hour or less". The 2022 rental Program Rules said "greater than 35 miles per hour" (Program Rules 07/31/22). A 2026 DMN summary says "above 35 mph".	**Roads posted exactly 35 mph are uncertain in Dallas.** Below 35 is lawful. Above 35 is crossing-only.

Issue	What one set of sources says	What another set says	Working position in this report
Dallas sidewalk scope	Since 2020, City-aligned sources say no sidewalk riding anywhere in Dallas.	2018–2019 sources, Reyes Law and a 2026 e-bike article say the ban covers only the CBD, Deep Ellum and the Cedars.	Treat it as **citywide**; the older sources describe the 2018–2019 regime. A "start or end your ride" sidewalk exception appears only in secondary sources, so do not rely on it.
Dallas page wording	"Scooters (rented and privately owned)" (BikeDFW restating the City).	"Dockless Vehicles may not be ridden ..." (another extract of the City page).	City statements, the council and the press all cover private riders. **Small residual doubt** until the code text is read.
Dallas helmet age	Under 17 (KERA 2023; the Parks-hosted copy of § 9-7).	Under 18 (2018 council briefing proposal; O'Hare Koch). DMN 2023 says "Helmets aren't required."	Adults are exempt. A rider **under 18** should wear a helmet until this is resolved.
Dallas curfew	KERA (2023) says scooters "can't be operated after 9 p.m."	The City frames the curfew as rental hours ("Operating hours for rented scooters"), changeable by staff.	**Rental-only (leaning).** Private riders still need lights at night under § 551.104.
University Park 10 mph	SMU policy sets a 10 mph limit.	The code wording "Operators will limit the speed ..." is an operator duty.	Treat 10 mph as SMU's rule and as prudent compliance. As an ordinance offense for private riders it is uncertain.
§ 541.201 motor vehicle exclusion	FindLaw and one Justia 2025 extract: the term "does not include an electric bicycle or an electric personal assistive mobility device".	Another Justia 2025 extract did not show it.	Immaterial to your scooter, which is excluded from motor-vehicle rules by § 551.352(e) in any case.
Court-of-record status	The Dallas court is a court of record (Gov't Code § 30.00811, extract-verified). University Park's citation page reportedly calls its court "a court of non-record" (uptexas.org).	The ticket-procedure researcher could not verify any of the three. Highland Park's status comes only from dated secondary sources.	Dallas: **record**. Highland Park and University Park: **likely non-record**. Confirm with the clerk.

2. Every lawful way to ride, surface by surface

2.1 Streets: Dallas below 35 mph, University Park only around SMU, Highland Park never

State law is the ceiling. A conforming scooter may use any street or highway posted **35 mph or less** and may cross faster roads **only at an intersection** (FindLaw § 551.352).

In Dallas, the 2018 amendment was adopted to "allow use of motor assisted scooters in public rights-of-way" (June 2018 council briefing). 2026 reporting says riders "must instead use bike lanes or ride in the street with traffic" (Dallas Morning News, 2026). Dallas's codified default limit is **30 mph** on any street not otherwise listed (Sec. 28-43; amlegal). Every unlisted residential street therefore sits below both the state's 35-mph ceiling and Dallas's "35 or higher" no-ride threshold.

On those streets you ride under the bicycle duties:

- keep to the right curb (§ 551.103);
- have a working brake, and a front lamp and rear reflector at night (§ 551.104);
- carry no passengers.

The City also states a **20 mph cap**.

Streets posted **exactly 35 mph** are legal under state law but fall inside the City's published "35 MPH or higher" no-ride wording. Rating: **ambiguous** until the § 28-41.1.1 text is read. Streets posted **above 35** are prohibited except for crossing at an intersection.

In University Park, public streets and alleys are closed to scooters by § 12.01.011(a). There is one exception: riders **18 or older** may ride the street on **Airline Road (SMU Boulevard to Daniel), SMU Boulevard and Bush Avenue** (eCode360). Hillcrest and Daniel segments are sidewalk-only, so riding in the street there falls outside the exception. A 2018 KRLD report gives the logic: where SMU owns both sides of a street, the street and sidewalk are allowed; where SMU owns one side, only the sidewalk is (KRLD).

In Highland Park, no street riding is lawful. Every street, alley and parkway is "public right-of-way" under § 12.09.002 (eCode360).

2.2 Sidewalks: the state allows them, and all three cities withdraw the permission

State law affirmatively permits sidewalks under § 551.352(d), and the motor-vehicle sidewalk ban in § 545.422 does not reach a conforming scooter. But § 551.352(b) lets cities prohibit sidewalk riding, and all three have:

- **Dallas** bans sidewalk riding citywide, for private and rented scooters alike, under the City's stated reading of § 28-41.1.1 (Community Impact).
- **Highland Park** bans every sidewalk.
- **University Park** bans every sidewalk except the listed ones, for riders 18 and older:
  - both sides of Airline (SMU Blvd. to Daniel), SMU Blvd. and Bush Ave.;
  - the east sidewalk of Hillcrest south of Daniel;
  - the south sidewalk of Daniel from Hillcrest to Airline;
  - both Daniel sidewalks from Airline to Durham.

  The Hillcrest and Daniel items are paraphrase only.

No other sidewalk exception exists in any of the three codes as far as the extracts show. The Dallas "start or end of ride" exception is secondary-source only and should not be relied on (BikeDFW).

2.3 Bike lanes and shared-use paths: on-street lanes follow the street's speed limit

On-street bike lanes. Section 551.352(a) is written in terms of "a street or highway", and a striped bike lane is part of that roadway. On this reasoning (an inference, not a holding), a bike lane takes the posted limit of its street. A lane on a 30-mph Dallas street is usable. A lane on a 40-mph arterial is not, except for crossing at an intersection. Dallas guidance points riders to bike lanes, and no ordinance requiring their use was found (DMN 2026). The City's Existing Bicycle Infrastructure map is the authoritative list. No bike lanes or sharrows were found in Highland Park or University Park. Rating: **subject to interpretation** for lanes on roads posted above 35.

Physically separated paths "set aside for the exclusive operation of bicycles" are expressly allowed by § 551.352(d). Two complications:

- Dallas's 2018 Ord. 31048 banned scooters on exactly those paths (Ord. 31048). That is the most preemption-vulnerable provision in this report (Section 7).
- Few if any Dallas facilities are exclusively for bicycles. The Harwood Street separated "micro-mobility" lanes were a pilot whose permanence is unconfirmed (Better Block). Whether a protected lane counts as a "path" or as part of the street is **subject to interpretation**.

Shared-use hike-and-bike trails are, by § 545.422(c), designed for "pedestrians, bicyclists, or both." They are not "exclusive" to bicycles, so § 551.352(d) grants no state-law right there, and access turns on the owner's rules (**ambiguous** at state level). Dallas closes them to scooters: "Motorized scooters are not permitted in City of Dallas parks or on trails" (Dallas Parks). The bans named in sources are:

- the Katy Trail ("No motorized vehicles permitted," Friends of the Katy Trail);
- White Rock Lake;
- more than 30 Lake Highlands and Lakewood parks (Community Impact).

The Santa Fe, SoPac, Northaven and Trinity trails are not named in any source, but they are City park facilities and lean covered. The **Ronald Kirk Pedestrian Bridge** carve-out ("may not operate on any public trail, except for the Ronald Kirk Pedestrian Bridge") is a rental Program Rule (City memo, Apr. 10, 2026). It is **uncertain** for private riders.

Highland Park's right-of-way definition expressly includes a "public transportation path", so its paths are banned. University Park park paths are covered by § 1.09.032 (single extract), and any sidewalk-like path by § 12.01.011.

2.4 Public and private property: ownership decides which rulebook applies

Property type	Dallas	Highland Park	University Park
Public parks and park paths	**Prohibited**: Parks policy and § 28-41.1.1 no-ride list (Dallas Parks)	**Prohibited**: "public area" in § 12.09.002 covers Lakeside, Flippen, Prather and Davis parks and the Turtle Creek paths. Tennis courts are also banned specifically (eCode360).	**Prohibited (likely)**: § 1.09.032 motorized vehicles (single extract). The parks are outside the permitted area.
Public plazas (e.g., AT&T Discovery District)	**Prohibited**: "plazas" are on the no-ride list (DMN, May 23, 2023)	**Prohibited** ("public area")	**Prohibited** if it is a public sidewalk. No plaza-specific rule was found.
Fair Park	**Uncertain to prohibited**: the "state fair grounds" exclusion is a rental rule, but Fair Park is parkland under the Parks ban.	n/a	n/a
Privately managed public park (Klyde Warren)	**Prohibited** by the owner's rules; enforced by removal or trespass (KWP Rules)	n/a	n/a
DART vehicles, stations and platforms	Carrying a scooter aboard rail is permitted (DART). Riding on platforms is **uncertain**: not addressed in the retrieved text, so assume you must walk. The Code of Conduct allows warning or ejection (DART Code of Conduct).	Same DART rules if a facility lies in the Town (not verified)	Same

Property type	Dallas	Highland Park	University Park
Private property open to the public (shopping centers, parking courts)	**Uncertain**: whether § 28-41.1.1 reaches private property is unknown. Owner consent controls.	**Prohibited**: "public area" includes outdoor areas "owned or operated by ... a private party", such as Highland Park Village's walks and parking courts.	**Permitted only with owner consent (subject to interpretation)**: § 12.01.011 by its terms reaches a "public street, highway or sidewalk", and a private lot is not publicly maintained.
Private property closed to the public (your driveway, a private yard, a closed lot) with owner consent	**Permitted with owner consent (subject to interpretation)**: the rules of the road apply to highways (§ 542.001 paraphrase, Justia). The Dallas no-ride categories are public places.	**Permitted with owner consent (subject to interpretation)**: the ban's own definition is limited to areas "open to the public for public use".	**Permitted with owner consent (subject to interpretation)**: the ban is limited to public streets and sidewalks.
SMU campus interior (private)	Whether any SMU property lies in Dallas was not verified.	n/a	**Permitted under SMU rules**: privately owned scooters only, 18+, 10 mph, not in buildings, not at the Bush Center (SMU Policy 9.14). "Since it is private property, scooter use on the interior of the campus is regulated by the University and not the City" (People Newspapers, 2019).
School property (HPISD)	n/a	No HPISD scooter rule was found (HPISD policies). It would bind students only as school discipline.	Same

2.5 Alternative vehicle classifications: no modification legally upgrades a stand-up scooter

For your device, the motor-assisted scooter classification is both **the one available and the most favorable**. Every other class is either unreachable or worse.

Real, functional changes can change classification:

- a true pedal drivetrain;
- a motor change;
- a seat or saddle;
- a speed cap the user cannot defeat.

Cosmetic changes do not. No Texas case or AG opinion squarely addresses reclassification of a scooter by modification. **Disguising a device is never a lawful option.** That includes "e-bike" decals, fake § 664.002 labels, dummy cranks, and anything that misstates speed or power. Section 664.002 requires the e-bike label to stay accurate after any modification (Ch. 664).

Modification	Genuine effect on classification	Registration / license / insurance consequence	Rating
Electronic speed limiter that the user cannot defeat	Irrelevant to motor-assisted-scooter status, because the definition has no speed element. It helps keep the device under NHTSA's informal ~20 mph line for federal "motor vehicle" treatment (NHTSA FAQ). App-toggleable modes probably do not count.	None. It stays a motor-assisted scooter.	Subject to interpretation (favorable)
Remove an optional seat	Strengthens motor-assisted-scooter status. With no "rider's saddle", the device cannot be a moped or motorcycle and avoids the pocket-bike seat element.	None.	Subject to interpretation (favorable)

Modification	Genuine effect on classification	Registration / license / insurance consequence	Rating
Add a seat kit	The motor-assisted-scooter deck may be for "stand or sit", but a seat supplies the saddle element that makes moped, motorcycle or pocket-bike status possible.	If the device becomes a moped (≤30 mph) or motorcycle: title, $30/yr registration (§ 502.251 via TPWD), insurance, a Class M license, and a helmet under 21. **None of this can be completed** without an MCO and FMVSS compliance (TxDMV Assembled Vehicles). If it becomes a pocket bike, § 551.353 keeps it off all roads, paths and sidewalks.	Subject to interpretation (unfavorable)
Add pedals	Only "fully operable pedals" with a human-power drivetrain move toward e-bike status. The motor must also be under 750 W, the speed must fit a class, and the device needs a § 664.002 label from a manufacturer or seller. Small wheels may also fail the bicycle definition (the 14-inch element is unverified).	If it genuinely became an e-bike: no title, registration or license under state law. The Highland Park and University Park e-bike permit regimes would then apply. Not realistic for this device.	Cosmetic pedals do nothing (clearly established). A real conversion is subject to interpretation.
Motor swap or power upgrade	750 W or more ends any e-bike claim. It also strengthens the purposive "exceeds 40 cc" argument against motor-assisted-scooter status.	Risk of being treated as an unregistrable motor vehicle.	Ambiguous
Decals, fake labels, misrepresentation	No legal effect. A false label conflicts with § 664.002.	Adds deception exposure. **Not recommended under any circumstances.**	Clearly established

EPAMD, **neighborhood electric vehicle / low-speed vehicle**, **golf cart** and **off-highway** classes are unavailable. They require side-by-side self-balancing wheels, four wheels, or off-road design (HB 1997 enrolled).

2.6 Local exceptions: plainly stated where none exist

- **Dallas:** no scooter exception for private riders was located. The Ronald Kirk Bridge allowance and the slow-ride zones are rental Program Rules, and the "start or end of ride" sidewalk allowance is secondary-only.
- **Highland Park:** none was found. There is no crossing, ADA, age or zone exception in the visible text.
- **University Park:** the only exception is the SMU-area permitted zone for riders 18 and older.
- **SMU:** privately owned scooters are allowed on the private campus interior under SMU Policy 9.14.

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3. Comparison table: Dallas permits the most, Highland Park nothing

Markers: **Clearly permitted / Permitted only under stated conditions / Prohibited / Uncertain**. No cell is marked permitted merely because no prohibition was found. The fines row and the argument row are not permission questions; their cells carry a certainty rating instead.

Row	Dallas	Highland Park	University Park
Ordinary public streets	**Permitted only under stated conditions.** Posted below 35 mph (30 is the default, Sec. 28-43); 20 mph cap; right-curb rule; lights at night. § 551.352(a) (FindLaw); 2018 right-of-way amendment (briefing). Roads posted exactly 35 mph: **Uncertain**.	**Prohibited.** § 12.09.002 (eCode360).	**Prohibited**, except **Permitted only under stated conditions** on Airline (SMU Blvd. to Daniel), SMU Blvd. and Bush Ave. for riders 18+. § 12.01.011(a), (c) (eCode360).
Roads with higher speed limits (>35 mph)	**Prohibited** except crossing. § 551.352(a).	**Prohibited.** § 551.352(a); § 12.09.002.	**Prohibited.** § 551.352(a); § 12.01.011.
Bicycle lanes	**Permitted only under stated conditions.** The lane must be on a street posted below 35; same speed cap. City guidance favors lanes (DMN 2026). Lanes on roads posted exactly 35: **Uncertain**. Lanes on roads posted above 35: **Prohibited** except for intersection crossing (inference from § 551.352(a); subject to interpretation).	**Prohibited.** Part of the right-of-way; no lanes were found.	**Prohibited** outside the permitted area. No lanes were found.
Sidewalks	**Prohibited** citywide (City's reading of § 28-41.1.1, Community Impact). Code text unseen.	**Prohibited.** § 12.09.002.	**Prohibited**, except **Permitted only under stated conditions** on the listed SMU-area sidewalks for riders 18+ (Hillcrest and Daniel items are paraphrase only).
Shared-use paths / trails	**Prohibited.** Parks policy (Dallas Parks); Katy Trail rules. Exclusive bicycle-only paths: **Uncertain** (Ord. 31048 ban versus § 551.352(d)). Ronald Kirk Bridge: **Uncertain** for private riders.	**Prohibited.** "Public transportation path" is in the right-of-way definition.	**Uncertain**, leaning prohibited. Park paths fall under § 1.09.032 (single extract). No designated paths were identified.
Public parks	**Prohibited.** Parks policy; § 28-41.1.1 no-ride list.	**Prohibited.** "Public area"; tennis-court rule.	**Prohibited** (likely). § 1.09.032 (eCode360).
Crossing a restricted road	**Permitted only under stated conditions.** Cross only at an intersection (§ 551.352(a)). For roads posted 35 or more, walking across removes any Dallas doubt.	**Prohibited** to ride. A dismounted rider is a pedestrian (Art. 12.09 paraphrase).	**Permitted only under stated conditions** between permitted segments, for riders 18+. Elsewhere, walk.
Speed restrictions	**Permitted only under stated conditions.** 20 mph citywide cap (ambiguous whether it binds private riders, leaning yes; City page). The 10 mph slow zones are rental-only.	**Prohibited** (no riding, so no speed rule applies).	**Permitted only under stated conditions.** 10 mph under SMU policy (SMU guidelines). As an ordinance offense for private riders, the 10 mph rule is **Uncertain**.
Helmet / equipment	**Permitted only under stated conditions.** No helmet for adults. Minors must wear one, with the age cutoff in conflict between under 17 and under 18 (KERA). Brake and night lights required everywhere (§ 551.104, texas.public.law).	**Uncertain** (moot). No scooter helmet rule was found. § 551.104 equipment applies wherever riding is lawful.	**Uncertain.** No scooter helmet rule was found; one ambiguous summary says helmets are "encouraged". § 551.104 equipment applies.
Registration / license	**Clearly permitted** without license, registration or insurance for a conforming scooter (§ 551.352(e)).	**Clearly permitted** without them under state law. Highland Park's e-bike permit does not cover scooters. Riding is still banned.	**Clearly permitted** without them under state law. Age 18+ is required for the permitted zone.
Fines and penalties (certainty rating)	Up to **$200** under § 28-41.1.1(k) (**clearly established** as City-stated). State-law violations 1–200 (§ 542.401). Rental $20 parking fine does not apply to private riders.	Up to **$500** general penalty under § 1.01.009 (eCode360). A scooter-specific penalty is **unknown**.	**$136** per SMU (undated; whether costs are included is unknown). The general-penalty cap is unconfirmed; the state cap is $500 (LGC § 54.001, texas.public.law). **Ambiguous.**

Row	Dallas	Highland Park	University Park
Best legal argument if challenged (certainty rating)	The facts do not meet the elements: posted limit below 35; location not a sidewalk, trail or park; device conforms. Or the rule is rental-only (curfew, slow zones, possibly 35-or-higher). **Subject to interpretation.** Preemption for exclusive bicycle paths: **moderate, untested**.	The location is not a "public area or public right-of-way", for example private property closed to the public. A validity challenge is weak. **Subject to interpretation.**	The rider was 18+ and within a § 12.01.011(c) segment, or the rule invoked is an operator duty (10 mph). **Clearly established** on the text if the facts fit.

4. Practical legal routes: 30-mph grids, SMU segments and DART bridges

4.1 Dallas corridors in three tiers

Tier 1 (lowest risk) is the 30-mph grid. Every Dallas street not listed in Sec. 28-44 defaults to 30 mph (Sec. 28-43). Codified segments below 35 include:

- **Stonebridge Dr.** (Turtle Creek Blvd. to Fitzhugh Ave.) at 20 mph;
- the **Cedar Springs Rd.** steps near Howard Megredy Circle at 30/20 mph (Sec. 28-44).

Because the codified tables lag behind sign changes and the excerpts were truncated, **the posted sign at the curb controls; field-verify every segment.**

Tier 2 (state-legal, Dallas-uncertain) is the codified 35-mph arterials. All of these are listed in Sec. 28-44/28-45. They are lawful under § 551.352(a), but each falls within Dallas's published "35 MPH or higher" no-ride wording:

Street	35-mph segment
Preston Rd.	Prestondell Dr. to Northwest Hwy.
Hillcrest Rd.	North city limits to Northwest Hwy.
Inwood Rd.	Royal Ln. to 870 ft south of Conveyor Ln.
Lemmon Ave.	Northwest Hwy. to Capps Dr.
Lovers Ln.	Lemmon Ave. to Briarwood Ln.; Greenville Ave. to Abrams Rd.
Mockingbird Ln.	McMillan Ave. to Briar Creek Ln.; Doug Dr. to Robin Rd.
Greenville Ave.	Walnut Hill Ln. to Mockingbird Ln.
Abrams Rd.	Skillman St. to Lakeshore Dr.
Skillman St.	Sandhurst Ln. to Richmond Ave.
Garland Rd.	Gaston Ave. to Tranquilla Dr.
Cedar Springs Rd.	Mockingbird Ln. to Hudnall St.
Harry Hines Blvd.	Ivan St. to Payne St.
East Grand Ave.	Tenison Pkwy. to Gaston Ave. (2023 ordinance)
US-75 service roads	Northwest Hwy. to Live Oak St.
Northwest Hwy.	"West of Starlight Rd." to Central Expwy. (where Starlight Rd. sits was not verified)

Tier 3 (crossing only, at intersections) is the segments above 35 mph:

Street	Segment above 35 mph	Posted
Northwest Hwy.	East of US-75	45
Northwest Hwy.	Far-west segments	40/45
Preston Rd.	North of Prestondell	45
Inwood Rd.	North of Royal	40
Lemmon Ave.	Capps to Thedford	40
Mockingbird Ln.	Briar Creek to Peavy	40
Greenville Ave.	North of Walnut Hill	40
Abrams Rd.	North of Skillman	40
Skillman St.	North segments	40/45
Garland Rd.	East of Tranquilla	40/45
Harry Hines Blvd.	North of Ivan	40/45
US-75 service roads	North of Northwest Hwy.	40
All freeway main lanes	—	—

Freeway main lanes include US-75, posted at 65 mph (NBC DFW).

4.2 Highland Park and University Park

Highland Park has no lawful public corridor. You cross it by carrying or walking the scooter, or by riding a route that stays on Dallas streets around the Town. Do not park or abandon the scooter on Town right-of-way.

University Park's lawful corridor is the SMU-area permitted zone, for riders 18 and older:

- the street or sidewalks of **Airline Rd.** (SMU Blvd. to Daniel), **SMU Blvd.** and **Bush Ave.**;
- sidewalk-only on **Hillcrest** (east side, south of Daniel);
- sidewalk-only on **Daniel** (south side from Hillcrest to Airline; both sides from Airline to Durham).

It connects to the SMU campus interior, which is private and open under SMU's rules. SMU describes the campus area as bounded by US-75, Hillcrest, Mockingbird and Daniel (SMU Directions). **Snider Plaza** lies on the west side of Hillcrest, opposite the permitted east sidewalk, and appears to be outside the zone. This is an inference not yet checked against the SMU map.

Riding just outside the boundary is exactly what drew **24 University Park Police citations** during the 2019 pilot (People Newspapers, Aug. 2019).

4.3 DART as the lawful bridge

DART's rail page says: "Bikes and scooters share the space inside DART and TRE cars with persons using wheelchairs and strollers. Please move your bike for those persons if needed" (DART). Carrying a powered-off scooter aboard rail and yielding the space is therefore a **clearly permitted** way to bridge Highland Park, University Park outside the SMU zone, and Dallas's banned trails and sidewalks.

Buses are not a reliable bridge. Bus racks are built for bicycles. DART's mobility-device guidance allows a two-wheeled electric device aboard a bus only when it is used as a mobility device for a disability (DART mobility-device PDF).

Do not ride on platforms. The rule on riding was not retrieved. The Code of Conduct authorizes warning or ejection from DART property, and DART has signaled possible Code of Conduct revisions (DART security release).

The Katy Trail's northern end sits beside the **Mockingbird Station** DART stop near SMU (Dallas County Katy Trail). Which city's rules govern the walk from that station to the permitted University Park segments must be verified on a map.

4.4 Detecting municipal boundaries

Highland Park is bordered by Dallas on the south, east and west and by University Park on the north. University Park is bordered by Dallas on the north, east and west (DART Daily). Signals to watch for at street level:

- Highland Park's **16 replacement "Town of Highland Park" limit signs** with a dark-blue design (People Newspapers);
- differences in street-sign fabrication: Highland Park buys its signs, while University Park makes its own;
- which police agency patrols.

University Park's truck-route table confirms that **Preston Rd. and Hillcrest Ave. run their full length within University Park city limits**, and that **Lovers Ln.** is in University Park from its west city limit to Preston (UP Art. 12.06).

No official source assigns the boundary segments of Mockingbird, Lomo Alto, Armstrong, Northwest Hwy. or Lemmon to a jurisdiction, and the centerline-versus-edge question is unresolved. A 2024 proposal would shift about **18 acres near Northwest Hwy.** (Boone Elementary area) from Dallas to University Park; whether it was completed is unknown (KERA, June 26, 2024).

Before a ride, check the UP interactive map, the UP zoning map and the HP Maps page.

4.5 What a route-specific plan needs from you

A segment-by-segment lawful plan requires:

- exact **start and destination addresses**;
- **time of day**, for the night lighting rule;
- the **rider's age**, which matters for University Park's 18+ rule and Dallas's minor helmet rule;
- the scooter's **top speed and any firmware cap**;
- its **rated and peak motor wattage**;
- whether it has a **seat**;
- its **light specifications**;
- whether it **folds**, and its weight, for DART carry-on;
- whether any destination is **private property with owner consent**;

- your tolerance for walking banned segments.

With those inputs, each segment can be checked against Sec. 28-44/28-45, the University Park permitted list, and the boundary maps, then field-verified at the curb.

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5. Police stops: what the officer may do and what you must say

Reasonable suspicion is a low bar; conviction is not. An officer may briefly detain you on reasonable suspicion of any offense, including a fine-only Class C. Under *Heien v. North Carolina*, 574 U.S. 54 (2014), a stop can rest on an **objectively reasonable mistake of law** (Justia; quotations unverified, from recollection). The Court said "an officer can gain no Fourth Amendment advantage through a sloppy study of the laws he is duty-bound to enforce". Justice Kagan's concurrence limits reasonable mistakes to genuinely ambiguous statutes requiring "hard interpretive work". Under *Michigan v. DeFillippo*, 443 U.S. 31 (1979), an officer may enforce a duly enacted ordinance even if a court later voids it (Justia; recollection).

Applied here:

- A Dallas officer who stops you on a road posted exactly 35 mph, relying on the City's "35 MPH or higher" wording, probably made a reasonable stop. That is true even if the code actually says "greater than 35".
- The **conviction** still requires proof beyond a reasonable doubt that the law in force prohibited your conduct (Penal Code § 2.01; recollection).
- An officer in a place with no local sidewalk ban who stops you for "sidewalk riding" makes an unreasonable mistake, because § 551.352(d) plainly permits it. Suppression under CCP art. 38.23 would then help only with evidence found after the stop, not with the riding the officer observed.

How Texas's Court of Criminal Appeals treats *Heien* was **not verified**.

Citation versus arrest. Under *Atwater v. City of Lago Vista*, 532 U.S. 318 (2001), and CCP art. 14.01(b), an officer **may** arrest for a fine-only offense committed in view. Citation in lieu of arrest under art. 14.06(b) is discretionary. Transportation Code § 543.004 makes a written notice to appear mandatory only for speeding and open-container offenses (all recollection; CCP ch. 14; Transp. Code ch. 543). Public intoxication is excluded from citation, so an intoxicated rider should expect custody.

Identification under Penal Code § 38.02. While merely detained, you commit no offense by declining to give your name, address and date of birth. Giving **false** information while detained is an offense (Class B). After a **lawful arrest**, refusing those three items is a Class C offense (recollection; Penal Code ch. 38). In practice, refusing ID at a Class C stop usually converts a citation into an arrest, because a citation needs an identified person to sign a promise to appear. That is an inference.

No driver's license is required. Chapter 521 governs operating a "motor vehicle", and § 551.352(e) removes those provisions from scooters. The failed S.B. 549 would have *added* a license requirement, which confirms none exists (Plural Policy S.B. 549). Highland Park's and University Park's driver's-license rules apply to **e-bikes**, not scooters.

Facts the officer needs to classify the device. Be ready to show, with a manufacturer spec sheet or photos:

- the number of wheels;
- that there is **no seat** and no pedals;
- the standing deck;
- that it can be **kicked along**;
- the working brake;
- that the motor is electric, and its wattage;
- its top speed;
- its lights;
- that it has no VIN.

Together these satisfy § 551.351 and rule out the e-bike, moped and pocket-bike classes.

Impound. No Texas statute specifically authorizes impounding a privately owned scooter for a Class C violation. The abandoned-vehicle law (ch. 683) is built for motor vehicles, and Chapter 59 forfeiture does not reach Class C offenses. Inventory or safekeeping is constitutional mainly when you are **arrested** and no reasonable alternative exists, under a standardized policy (*South Dakota v. Opperman*; *Colorado v. Bertine*; all recollection; Justia Opperman). For a cited, compliant rider, there is no evident basis to keep the scooter; you walk it away or hand it to a companion. That is subject to interpretation.

Recording. The Fifth Circuit recognizes a First Amendment right to film police performing duties in public, subject to reasonable time, place and manner limits (*Turner v. Driver*, 848 F.3d 678 (5th Cir. 2017); recollection). Penal Code § 38.15(d) provides a "speech only" defense to interference, but physical obstruction is not protected. Texas is a one-party-consent state (§ 16.02). A 2023 25-foot "buffer" bill did not pass, and **2025 legislation was not verified** (all recollection; Penal Code ch. 38).

Preserving evidence. At the scene and within hours, record the following:

- photos or video of the nearest **speed-limit sign** and any no-ride or trail sign;
- the exact location, using a GPS pin and the cross-street;
- whether you were in the street, a bike lane, a crosswalk at an intersection, or on a sidewalk;
- the time, and the lighting conditions;
- your scooter's lights working;
- the scooter itself (deck, no seat);
- the officer's name and badge number, the agency, and whether a body camera was visible.

Write a dated narrative the same day.

DWI. Do not treat the motor-vehicle exemption as protection from DWI. The Penal Code uses its own definition (Section 1.1).

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6. Fighting a ticket: deadlines, discovery and defenses ranked

6.1 Identify the offense, the court and the deadline

Read the citation for the **charging provision**. It will be either a city ordinance or a Transportation Code section:

Charging provision	Penalty	Source
Dallas § 28-41.1.1	Up to $200	§ 28-41.1.1(k)
Highland Park § 12.09.002	Up to $500	§ 1.01.009
University Park § 12.01.011	—	—
Transportation Code § 551.352 or a bicycle rule	1–200	§ 542.401

The courts:

- **Dallas Municipal Court** is a **court of record** under Gov't Code § 30.00811 (texas.public.law). Logistics start at Court & Detention Services; the address and hours were not verified.
- **Highland Park Municipal Court** is at Town Hall, 4700 Drexel Dr., phone 214-559-9303. Court sits on Tuesdays. You have **20 days from the citation** to plead, pay or set a court date (hptx.org).
- **University Park Municipal Court** is at 3800 University Blvd., phone 214-987-5331. Per a search extract of its citation page, it describes itself as "a court of non-record" (uptexas.org). A second research pass could not confirm this.

Treat the **appearance date on the citation** as the controlling deadline. Missing it risks a Class C failure-to-appear charge (Penal Code § 38.10; recollection). **Do not pay if you intend to contest.** Payment is treated as a nolo plea and a finding of guilt (CCP art. 27.14(c); recollection; CCP ch. 27).

6.2 Gather evidence through discovery, public records and the ordinance history

Discovery. Since **January 1, 2025**, municipal-court procedure has been governed by **CCP Chapter 45A**, which replaced Chapter 45 (CCP ch. 45A). Art. 45A.003 imports the Code's general provisions where 45A is silent (Justia Subch. A). That brings in **art. 39.14 discovery**, chapter 24 subpoenas, art. 28.01 pretrial hearings, and art. 27.08/27.09 exceptions.

Serve a written art. 39.14 request on the **city prosecutor** for:

- the offense report and the officer's notes;
- body-worn and dash video;
- photos;
- any speed-measurement data.

Under art. 39.14(h) the State must disclose exculpatory or impeaching information. A pro se defendant may be limited to inspection rather than copies under art. 39.14(d). Both points are recollection; check CCP ch. 39.

Public Information Act. You can also send a PIA request to the police department, but it is slower. The law-enforcement exception (§ 552.108) often blocks release while a case is pending, though "basic information" stays public. No authority was found that a PIA request tolls any court deadline (recollection; Gov't Code ch. 552).

Body-camera footage. Occupations Code § 1701.661 requires a written request stating:

- the date and approximate time of the recording;
- the specific location;
- the name of a person who is the subject of the recording.

Recordings of fine-only misdemeanor stops that did not end in arrest can be released only **with the subject's written authorization**, so **sign and include one** (recollection, moderate-high confidence; Occ. Code ch. 1701). The assignment's framing of § 1701.660 conflicts with the researcher's recollection that it governs "Recordings as Evidence" in deadly-force and misconduct matters. Verify before citing it.

Ordinance version in effect. Read the section's history note. Then obtain **certified copies** of each amending ordinance in force on the offense date from the Dallas City Secretary, the Highland Park Town Secretary, or the University Park City Secretary. Ask the court to take judicial notice under Tex. R. Evid. 204; certified copies are self-authenticating under Rule 902(4) (both recollection). Pull the adoption record as well (agenda, minutes, preamble):

- Dallas Ord. 31048 and the 2022 amendment;
- Highland Park Ord. 2042 and Ord. 2150;
- University Park Ord. 18-048/18-049 and the 2009 ordinance.

That record shows whether a § 551.352(b) safety determination was made.

6.3 Defenses, rated

Defense	Strength	Evidence required	Authority
Wrong place for the charge. You were on a Dallas street posted below 35, a University Park permitted segment, or private property closed to the public; or you crossed at an intersection.	**Strong** if the facts support it	Sign photos, GPS pin, Sec. 28-44 entry, permitted-area text, owner-consent statement	§ 551.352(a); § 12.01.011(c); "public area" definition in Highland Park Art. 12.09
University Park exception satisfied (18+ and within a listed segment)	**Strong**	ID showing your age; location proof; certified text of § 12.01.011(c)	eCode360
Rental-only rule applied to a private scooter (curfew, slow zone, $20 parking, University Park operator 10 mph)	**Strong** for the curfew and slow zones. **Moderate** for the Dallas 20 mph cap and the "35 or higher" wording until the code text is read.	Proof of ownership (receipt); the Program Rules showing they are keyed to § 43-157 "shared dockless vehicle"	Program Rules (2024); Ord. 30936
Ordinance version, citation or complaint defect. The cited section did not prohibit the conduct on that date; the complaint omits the territorial-limits allegation or other requisites.	**Moderate to strong** if a variance exists. **Weak** if it is purely technical. Must be raised in writing **before trial**.	Certified ordinance history; a copy of the complaint	Art. 45A.101 (FindLaw); former art. 45.019(f) waiver rule (recollection)

Defense	Strength	Evidence required	Authority
State failed to prove the posted limit, the location type, or that the device is a "motor-assisted scooter"	**Moderate**	Discovery; cross-examination; the absence of sign evidence. Highland Park does not post 30-mph signs, so this cuts both ways there (HP Art. 12.06).	Penal Code § 2.01 (recollection); art. 45A.004 rules of evidence
Lighting and equipment compliance (night-lamp charges)	**Strong** if the lights meet the 500-ft standard	Spec sheet; a demonstration video at 500 ft	§ 551.104
Preemption: ban on an exclusive bicycle path	**Moderate, untested**	Proof that the path is "set aside for the exclusive operation of bicycles"	§ 551.352(d); § 542.201; *Laredo*
Preemption: no safety determination in the record	**Low to moderate**	Adoption record obtained through a PIA request	§ 551.352(b); *Brookside Village* presumption cuts against
Preemption: blanket citywide ban, or Highland Park's private "public area" reach	**Weak** as a validity attack. Home-rule power covers areas outside § 551.352.	—	Gov't Code § 311.012(b) (recollection); LGC § 51.072
Device is not a motor-assisted scooter	**Weak and dangerous.** It converts an ordinance charge into potential no-registration, no-license and no-insurance exposure.	—	§ 541.201; TxDMV title rules
Officer's mistake of law (*Heien*)	**Weak** against observed riding. It matters only for suppressing later-found evidence.	Body-camera footage	*Heien*; art. 38.23 (recollection)

6.4 Contesting: pleas, trial, deferral and appeal

Pleas. You may plead **not guilty**, **nolo contendere**, or **guilty**. A nolo plea cannot be used as an admission in a civil suit (art. 27.02(5); recollection). If you plead not guilty, the State must file a conforming complaint unless you agree in writing to proceed on the citation (art. 27.14(d); recollection).

Trial. You may request a **jury trial**. A municipal jury has six members (former art. 45.027, per TMCEC). Alternatively, waive the jury in writing under art. 45A.155 (Justia). There is no right to appointed counsel for a fine-only offense (art. 1.051; recollection).

Deferred disposition is the main conviction-avoiding outcome. Under art. 45A.302, on a plea or finding of guilt in a fine-only case, the judge may defer for up to **180 days** without adjudicating guilt. The judge may impose a "special expense fee" no greater than the maximum fine, plus court costs (Justia 45A.302). Conditions may include "another course as directed by the judge" (art. 45A.303).

Driving-safety-course dismissal is likely unavailable. It requires an offense that "involves the operation of a motor vehicle" (former art. 45.0511, presumed carried into 45A.351 et seq.; TMCEC Bench Book). A scooter is not a motor vehicle under Title 7.

Inability to pay. Arts. 45A.252, .254 and .257 provide for an ability-to-pay inquiry, community service credited at no less than $100 per 8 hours, and waiver for indigence (TMCEC blog).

Appeal from Dallas (court of record). There is **no trial de novo**. The appeal is decided on the record by the Dallas County criminal courts with appellate jurisdiction (Gov't Code § 30.00811; SPA *Villa* summary). To preserve it:

- **ask for a court reporter or recording at trial**;
- file a written motion for new trial **within 10 days** setting out the points of error;
- post a bond of the greater of $100 or double the fine and costs.

The bond and deadline figures come from a city guide and a 1999 bill analysis, not statute text (North Richland Hills guide; HBA H.B. 651). The ch. 30 section numbers are recollection.

Appeal from Highland Park or University Park (likely non-record; flag the uncertainty). The steps are:

- file a motion for new trial within **5 days** of judgment (art. 45A.201);
- file the **appeal bond within 10 days after judgment is entered** (art. 45A.203). Do not wait for a ruling on the motion. A late bond leaves the county court without jurisdiction.

The minimum bond is at least $50. The former statute set it at two times the fine and costs.

The appeal is a **trial de novo** in county court (art. 45A.202: "a de novo trial shall be held on appeal unless the appeal is taken from a municipal court of record"; texas.public.law). Highland Park's non-record status rests on dated secondary sources (Avvo). **Confirm with each clerk before trial.**

Further appeal. Appeal beyond county court is barred where the fine is $100 or less, unless the sole issue is the constitutionality of the statute or ordinance (art. 4.03; recollection).

6.5 Sample fact-dependent defense argument

> **State v. [NAME], Cause No. [____], [Dallas / Highland Park / University Park] Municipal Court.**
>
> **1. Charge.** The complaint alleges that on [DATE] at [TIME] the defendant operated a motor-assisted scooter at [LOCATION], in violation of [ORDINANCE § ____ / Transp. Code § ____].
>
> **2. The State must prove each element of the ordinance in force on [DATE].** Penal Code § 2.01. Defendant offers a certified copy of [Ord. No. ____, effective ____] (Ex. [__]) and requests judicial notice under Tex. R. Evid. 204. As in force, the provision prohibits operation [on a sidewalk / on a road with a posted limit of ["greater than 35" / "35 or higher"] mph / outside the areas listed in § 12.01.011(c)].
>
> **3. The facts fall outside the prohibition.** [The posted limit at [LOCATION] was **[] mph (Ex. [**] photo; Sec. 28-44 entry).] [Defendant was in the roadway / a bike lane / crossing at the intersection of **[] and [**], conduct § 551.352(a) expressly permits.] [Defendant was [AGE] years old (Ex. [__]) and was on [SEGMENT], which § 12.01.011(c)[(A)/(B)/(C)] lists as a permitted area.] [The location was [DESCRIPTION], private property not open to the public, which is outside the definition of "public area."]
>
> **4. The rule invoked does not apply to a privately owned scooter.** [The [curfew / slow-ride zone / 10-mph operator limit] appears in [the Shared Dockless Vehicle Program Rules issued under § 43-158 / Art. 12.09], which govern "shared dockless vehicles" or permitted operators. Defendant's scooter is privately owned (Ex. [__] receipt) and was never offered for rent.]

> **5. The device conforms to state law.** The scooter meets every element of Transp. Code § 551.351 (Ex. [__] spec sheet and photos): [two wheels; braking system; electric motor; standing deck; human-propellable; no seat]. Under § 551.352(e), no motor-vehicle provision of Title 7 applies.
>
> **6. In the alternative, the ordinance is unenforceable as applied (preserved by written pretrial exception under CCP art. 27.08 via art. 45A.003).** [To the extent the ordinance bars operation on [PATH], a path set aside for the exclusive operation of bicycles, it conflicts with § 551.352(d). Section 551.352(b) authorizes local prohibitions only on "a street, highway, or sidewalk", so the ban is not "expressly authorized" as § 542.201 requires.] [Alternatively, no governing-body determination that the prohibition is "necessary in the interest of safety" appears in [Ord. No. ____] or its adoption record (Ex. [__]).]
>
> **7. Relief.** Defendant requests a judgment of acquittal or dismissal. In the alternative, defendant requests deferred disposition under art. 45A.302.

Paragraphs 2–5 are the substance. Paragraph 6 is a fallback that must be raised in writing before trial, and its merits are untested. All bracketed items depend on your evidence.

6.6 Questions to ask a Texas attorney

#	Question
1	What does the **current text of Dallas § 28-41.1.1** say on sidewalks, the 35-mph threshold ("35 or higher" versus "greater than 35"), the 20 mph cap, minors and helmets? Which lettered subsection was I charged under?
2	Is this court **of record**? If so, how do I make sure a record is made?
3	Should I file a **written exception** (art. 27.08, or a 45A.101 defect) before trial, and by what date?
4	Will the prosecutor offer **deferred disposition**? Is it better than trial on these facts?
5	Does the **adoption record** of [ordinance] contain a § 551.352(b) safety determination? Is a preemption argument worth preserving for appeal given the art. 4.03 $100 threshold?
6	For a 1,000 W-plus or 30 mph-plus scooter, how much risk does the **40-cc element** create if I argue device classification?
7	Could a conviction be **reported to DPS** or affect insurance, given that a scooter is not a motor vehicle under Title 7?
8	Does University Park enforce its **10 mph** rule against private riders, and under what provision?
9	Has **Highland Park Ord. 2150** (2025) or any 2026 ordinance changed Art. 12.09?
10	What is my **DWI and public-intoxication** exposure on a scooter under Penal Code § 49.01 and § 32.34?

7. Are the local bans vulnerable? Arguably in places, never held invalid

No court has held any Dallas, Highland Park or University Park scooter rule invalid. No Texas appellate decision or AG opinion construing § 551.352(b) was found. Everything below is "arguably invalid", not "held invalid".

The framework has four parts:

- All three cities are **home-rule** and need only freedom from a clear state limit (LGC § 51.072).
- Courts harmonize a statute and an ordinance where any reasonable construction allows (*Santa Fe v. Young*, quoting *Dallas Merchant's*).

- The **express** uniformity clause in § 542.201 bars conflicting local traffic rules "unless expressly authorized". That shifts the question from legislative intent to whether a particular rule **conflicts with § 551.352** and falls outside **§ 551.352(b)**.
- Where a statute expressly limits cities, the Texas Supreme Court reads it strictly (*Laredo,* Justia).

H.B. 2127 is irrelevant. It reaches eight codes, and the Transportation Code is not one of them (recollection).

Ban	Case for validity	Case against validity	Likelihood of invalidation
Dallas sidewalk ban	Section 551.352(b) expressly authorizes sidewalk bans. The 2018 council briefing documents a safety rationale (briefing).	Only a total absence of any safety determination.	**Low**
Dallas no-ride rule on roads posted 35 mph or more	A ban on "a street" is within (b). Banning more streets than the state does is a prohibition (b) allows, not an authorization the state forbids.	The real issue is applicability: whether it is in the code at all or only in rental Program Rules.	**Low** for validity. **Moderate** as an applicability defense.
Dallas park, trail and plaza bans	Shared-use trails are not "exclusive" bicycle paths, so (d) grants no right there. Park power is recognized in § 542.202(a)(6).	(b) does not mention parks or trails.	**Low**
Dallas ban on paths reserved exclusively for bicycles (Ord. 31048)	§ 542.202(a)(4) bicycle regulation; § 551.106 bike-path speed limits; *Dallas Merchant's* harmonization. A bike trail might itself be a "highway".	(d) says a person "may operate" on such paths. (b) lists only "street, highway, or sidewalk". *Expressio unius*. § 542.201 bars a conflict "unless expressly authorized". *Laredo*-style strict reading.	**Moderate**, the best challenger argument, but untested. It reaches few real places.
Dallas 20 mph cap	A supplementary, non-conflicting rule.	None strong.	**Low**
Highland Park ban on streets and sidewalks	Within (b). The singular includes the plural (Gov't Code § 311.012(b); recollection). The 2018 coverage reports a safety rationale (People Newspapers).	No safety finding appeared in the visible code text; it may sit in Ord. 2042's preamble. The argument that (b) contemplates location-specific judgments is weak.	**Low to moderate**
Highland Park "public area" reach onto private property open to the public	Home-rule police power needs no state grant. State law confers no right to ride on private lots, so no conflict exists.	(b) speaks only of "street, highway, or sidewalk". The ordinance reaches beyond the statute it presumably invoked.	**Low** as preemption. The stronger use is factual: the State must prove the place was "open to the public for public use".
Highland Park's $500 fine versus the state's $200	LGC § 54.001 allows ordinance fines up to $500 as independent ordinance offenses.	A novel argument that the higher fine conflicts with § 542.401's range.	**Low**
University Park ban and SMU exception	Within (b). The 2009 ban was "developed ... to safeguard against serious accidents and injuries" (People Newspapers, 2019). The age and zone conditions are supplementary.	The ordinance's own safety recital was not seen.	**Low**

8. Recommendations ranked by certainty, cost and ticket risk

8.1 Best legal way to ride in each jurisdiction

Dallas. Ride in the street or in a bike lane on streets posted **30 mph or less**:

- at **no more than 20 mph**;
- as near the right curb as practicable, except where § 551.103 exceptions apply;
- with a working brake;
- at night, with a white front lamp visible at 500 feet and a red rear reflector or lamp;
- carrying no passenger.

Cross roads posted above 35 **only at intersections**; walking across 35-mph roads removes any Dallas doubt. **Never ride sidewalks, trails (including the Katy Trail and White Rock Lake), parks or plazas.** The 9 p.m. curfew and the 10 mph slow-ride zones appear to be rental rules that do not bind you. The curfew is rated ambiguous, leaning rental-only, and no source applies the slow zones to private riders. Following the slow-zone speeds anyway costs little.

Highland Park. No lawful public riding exists. Ride only on private property closed to the public, with the owner's consent. Carry or walk the scooter through Town; a dismounted rider counts as a pedestrian. Do not park it on Town right-of-way. Use Dallas streets or DART rail to route around the Town.

University Park. If you are **18 or older**, ride only:

- on the street or sidewalks of Airline Rd. (SMU Blvd. to Daniel), SMU Blvd. and Bush Ave.;
- on the listed Hillcrest and Daniel **sidewalks**, staying on the sidewalk;
- on SMU's interior campus under Policy 9.14.

Keep to **10 mph**. Everything else in University Park is off-limits, including Snider Plaza and the parks.

8.2 Options ranked

Rank	Option	Legal certainty	Practicality	Cost	Ticket risk
1	Dallas streets posted 30 mph or less (and bike lanes on them), at 20 mph or less, lights at night	High: § 551.352(a) plus the Dallas right-of-way authorization	High: most of the Dallas grid	None	Low
2	SMU interior campus (private scooter, 18+, 10 mph)	High: owner policy	Low to moderate: campus only	None	Low. Violations bring SMU discipline or removal rather than city fines.
3	University Park permitted SMU segments (18+, 10 mph, sidewalk-only where listed)	High for Airline, SMU Blvd. and Bush. Ambiguous for the exact Hillcrest and Daniel geometry.	Low: a few blocks	None	Low inside the zone. **High** one block outside.
4	DART rail carry-on across banned zones	High: DART's rail page	Moderate: depends on stations and crowding; buses unreliable	Transit fare (amount not researched)	Low aboard. Moderate if ridden on platforms.

Rank	Option	Legal certainty	Practicality	Cost	Ticket risk
5	Private property closed to the public, with owner consent (all three cities)	Moderate to high (subject to interpretation)	Low	None	Low
6	Dallas arterials posted exactly 35 mph	**Uncertain**: legal under state law, possibly banned in Dallas	High: direct routes	None	**Moderate**: a defensible citation of up to $200
7	Dallas private property open to the public (shopping centers)	Uncertain; owner rules govern	Moderate	None	Moderate (trespass or removal)
—	Reclassifying the scooter as an e-bike or moped	**Not available** for this device	—	—	—

8.3 Locations and items needing verification

These items should be checked before relying on this report:

- the full current text of **Dallas § 28-41.1.1** on amlegal, and the **4.17.26 Program Rules**;
- the codified **Sec. 28-44/28-45** limits against the posted sign on each arterial you use, including where Starlight Rd. sits on Northwest Hwy.;
- jurisdiction of the boundary segments: Mockingbird, Preston, Hillcrest, Lovers, Lomo Alto, Armstrong, Northwest Hwy. and Lemmon;
- the exact Hillcrest and Daniel permitted segments ("Daniel Street" versus "Daniel Avenue"), and SMU's scooter map and street-ownership list;
- the Ronald Kirk Bridge and Fair Park status for private riders;
- whether any SMU property lies in Dallas;
- Highland Park **Ord. 2150** and later ordinances;
- the June 16, 2026 People Newspapers Park Cities scooter item, which was noticed but not reviewed (People Newspapers);
- DART's Code of Conduct on riding at platforms;
- the 2024 University Park–Dallas boundary adjustment;
- the court-of-record status of Highland Park and University Park.

8.4 Scooter specifications to confirm

Confirm each of the following, ideally from the manufacturer's spec sheet:

- **No seat or saddle.** This keeps the scooter out of the moped, motorcycle and pocket-bike classes.
- **Motor rated and peak wattage.** This is the 40-cc ambiguity; the risk rises above about 1,000 W.
- **Top speed and any non-defeatable firmware cap.** NHTSA's informal line is about 20 mph.
- **Wheel count and size.**
- **Kickability.** The scooter must be able to be propelled by human power alone.
- **Brakes** able to skid a wheel on dry pavement.

- **A white front lamp visible at 500 ft, and a red rear reflector or a red lamp visible at 500 ft.**
- **No pedals.**

Keep the spec sheet and the purchase receipt with your records, ideally as a phone photo.

8.5 Restrictions most likely to produce a valid citation

These restrictions rest on clear text or a clearly stated City position, and the facts are easy to prove:

- riding on any **sidewalk in Dallas**;
- riding on the **Katy Trail**, White Rock Lake or any Dallas park;
- riding anywhere public in **Highland Park**;
- riding anywhere in **University Park** outside the SMU segments, or while under 18;
- riding on any road posted **above 35 mph** other than an intersection crossing;
- riding at **night without compliant lights**;
- **DWI or public intoxication**.

8.6 Defensible ambiguities worth an attorney's review

These ambiguities are worth an attorney's attention:

- Dallas's **"35 MPH or higher"** wording against the state's "35 or less";
- whether the Dallas **20 mph cap** and the University Park **10 mph** rule bind private riders;
- Dallas's ban on **exclusive bicycle paths** against § 551.352(d);
- Highland Park's **private "public area"** reach;
- missing or present **safety determinations** in the adoption records;
- the **40-cc** element for high-power scooters;
- **DSC eligibility** and **DPS reporting** for scooter convictions;
- **scooter DWI**.

8.7 Ticket-risk minimization plan (before and during rides)

Step	Action	Why
1	Pull the current Dallas § 28-41.1.1 text and save a dated PDF.	It resolves the largest "uncertain" cells.
2	Map each route against Sec. 28-44, the University Park permitted list and the boundary maps. Field-check the signs.	The posted sign is the element the State must prove.
3	In Dallas, keep to streets posted below 35, at 20 mph or less, never on sidewalks, trails, parks or plazas.	City-stated rules carrying a $200 fine.
4	Treat Highland Park as walk-or-carry only, and never park the scooter on Town right-of-way.	§ 12.09.002 and the parking clause.
5	In University Park, ride only if 18+, only inside the listed segments, at 10 mph or less, carrying ID that shows your age.	§ 12.01.011(c); SMU policy.
6	Run front and rear lights from dusk onward, and test the brakes.	§ 551.104.

Step	Action	Why
7	Carry the spec sheet or photos and proof of ownership.	Classification facts, and proof it is not a rental.
8	Bridge banned zones by DART rail, with the scooter powered off and yielding the wheelchair area. Walk it on platforms.	DART rail policy.
9	Never ride after drinking.	DWI and public-intoxication exposure.

8.8 Post-ticket action plan

Step	Action	Deadline / authority
1	Do not pay. Calendar the appearance date (Highland Park: 20 days from the citation).	Art. 27.14(c) (recollection); hptx.org
2	Write a same-day narrative. Photograph the location and signs. Save GPS data.	Evidence preservation
3	Identify the charging provision and the court's record status.	Section 6.1
4	Enter a **not guilty** plea and request a jury or bench trial.	Art. 45A.155
5	Serve an art. 39.14 request on the prosecutor. Send a body-camera request with signed subject authorization. Send a PIA request for the ordinance adoption record.	Art. 45A.003; Occ. Code § 1701.661 (recollection)
6	Obtain certified copies of the ordinance in force on the offense date.	Tex. R. Evid. 204, 902(4) (recollection)
7	Consult a Texas attorney using the questions in 6.6. File any written exception **before trial**.	Former art. 45.019(f) waiver rule (recollection)
8	Weigh deferred disposition against trial.	Art. 45A.302
9	If convicted: in **Dallas**, file a motion for new trial with points of error within 10 days, after making a record at trial. In **Highland Park or University Park**, file the appeal bond within 10 days of judgment, for a de novo trial.	Gov't Code ch. 30; arts. 45A.201–.203

Conclusion

Litigation will not widen the lawful map much, but careful reading will. Every validity attack is either untested or weak. The places where a private rider gains real ground are **applicability** questions:

- the Dallas curfew and slow zones appear to bind only rentals;
- University Park's 10 mph rule is phrased as a duty on rental operators;
- the Dallas "35 or higher" threshold may live only in rental-program language.

A single reading of the current Dallas § 28-41.1.1 text, together with the adoption records of Highland Park Ord. 2042 and University Park Ord. 18-048/18-049, would settle most of the "uncertain" cells in this report. That document work is worth more than any preemption brief.

The second lesson is that the Park Cities are effectively islands closed to riding inside an open Dallas grid. Highland Park allows no public riding at all. University Park's lawful zone is a few blocks around SMU, plus a campus whose rules are set by a private owner. That makes DART rail and Dallas's 30-mph streets the realistic network. Because the binding variable is often a posted

sign or a city-limit line rather than a statute, the most protective habit is a documented route that has been checked at the curb. If you are cited, the case will usually turn on whether the State can prove where you were and what you were riding.